

Confidentiality & Information-Protection Undertaking

To be signed and returned to the Company

Employee Name: _____

Designation: _____

Date: _____

This Undertaking is given by me to Traverse Inc. (the "**Company**"), which operates the restaurant Alinea at Sohoni Mansion, Kemps Corner, Mumbai, and forms part of and is a condition of my employment. In the course of my employment I will have access to confidential and proprietary information belonging to the Company. I agree to the following.

1. Confidential Information

For the purposes of this Undertaking, "Confidential Information" means all non-public information of the Company in any form, whether or not marked confidential, including but not limited to:

- recipes, sub-recipes, preparation methods, plating standards, food and beverage costings, and bills of quantity (BOQ);
- the food menu, wine and cocktail programmes, mark-up formulae, and pricing strategy;
- supplier, vendor, and importer lists, their pricing, credit terms, and contract terms;
- guest data, including reservation lists, contact details, dining history, and guest preferences and notes;
- financial information, including sales figures, covers, revenue, margins, profit and loss data, and staff remuneration;
- the Company's systems and software, including Kitchen-OS and the point-of-sale system, together with their design, logic, configuration, reports, and exported data;
- standard operating procedures, training material, business plans, and any information relating to the Company's existing or contemplated concepts and outlets.

2. My Obligations

1. I shall keep all Confidential Information strictly confidential and shall use it solely for the proper performance of my duties for the Company.
2. I shall not, directly or indirectly, disclose, transfer, copy, or communicate any Confidential Information to any other restaurant, hospitality business, or any person who is not authorised by the Company to receive it.
3. I shall not send, forward, or copy any Company email, document, or data to any personal account or to any unauthorised person, whether by email, messaging application, cloud storage, or any other means.
4. I shall not photograph, film, or record the back-of-house areas, kitchen, systems, or any Company documents without the prior written authorisation of the Company.
5. I shall take all reasonable care to protect Confidential Information from unauthorised access, loss, or misuse, and shall comply with the Company's policies on data protection, including its obligations under the Digital Personal Data Protection Act, 2023 in respect of guest and employee personal data.
6. I shall not make any public statement (including on social media) concerning the Company's confidential business, its guests, or its internal affairs.

3. Ownership of Work Product

I agree that all recipes, dishes, menus, processes, written material, photographs, content, designs, and software that I create, develop, or contribute to in the course of my employment, whether alone or with others, are created for the Company and are its exclusive property. To the extent that any rights in such work do not vest automatically in the Company, I assign those rights to the Company absolutely, and I shall do all things reasonably required to give effect to this. This clause does not apply to anything I developed wholly independently of my employment, on my own time, and without use of the Company's resources or Confidential Information.

4. Return and Deletion on Exit

On the termination of my employment for any reason, or earlier if the Company so requests, I shall immediately return to the Company all physical documents, keys, devices, and materials containing Confidential Information, and shall permanently delete any Confidential Information held on any personal device or account, confirming such deletion in writing if asked.

5. Survival

My obligations under this Undertaking are in addition to my duties under my contract of employment and the general law. They apply during my employment and continue in force after my employment ends, for so long as the information remains confidential.

6. Consequences of Breach

I understand that any breach of this Undertaking is a serious matter and constitutes misconduct, which may result in disciplinary action up to and including termination of employment. I further understand that the Company may, in addition, pursue any legal remedy available to it, including seeking an injunction and damages, and referral to the authorities where the conduct is unlawful.

7. Lawful Disclosure

Nothing in this Undertaking prevents me from making a disclosure that is required by law, by a court, or by a regulatory or statutory authority, or from making any protected disclosure to which I am lawfully entitled.

8. Acknowledgement

I confirm that I have read and understood this Undertaking, that I have had the opportunity to ask questions about it, and that I agree to be bound by it.

Signature of Employee

Name: _____

Date: _____

For Traverse Inc.

Eashan Lulla

Founder

Date: _____